Harris County District Court

Cause No. 2023-CV-0047

Jessica Olson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	10-22-23
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and in any amendment or supplement thereto, and demands strict proof thereof as reqiured by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant further asserts the following affirmative defenses.

First, Plaintiff's alleged injuries were not proximately caused by any negligence of Defendant. The collision was of low speed and the forces involved were insufficient to cause the injuries claimed, and any condition Plaintiff now complains of predates the occurrence or arises from unrelated causes.

Second, Plaintiff failed to mitigate damages by unreasonably delaying or declining recommended medical treatment, and any recovery must be reduced accordingly.

Third, Plaintiff's own negligence caused or contributed to the occurrence. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributed to Plaintiff, and if that percentage exceeds fifty percent, Plaintiff may not recover.